

1.

CASE #	CASE NAME	HEARING NAME
CVRI2504066	HEREDIA vs WINGLER	MOTION FOR LEAVE TO AMEND

Tentative Ruling:

The cross-complainants' motion for leave to amend their cross-complaint is denied.

Analysis:

A motion for leave to amend must be accompanied by a declaration and must specify: (1) the effect of the amendment; (2) why the amendment is proper and necessary; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the amendment was not made earlier. (C.R.C. rule 3.1324(b)(1)-(4).)

The motion is accompanied by the "declaration" of Attorney Michael V. Hesse. That document does not include a signature under penalty of perjury. Only one page of the declaration is provided and, without a signature, it is not a declaration at all.

Even if the declaration had been properly signed, it does not comply with CRC Rule 3.1324. Specifically, the declaration does not explain why the amendment is proper and necessary, when the facts giving rise to the amended allegations were discovered, and why the motion was not filed earlier.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2506478	RIVERA vs MCC PIPELINE, INC.	MOTION TO COMPEL PLAINTIFF ROGELIO RIVERA'S INITIAL RESPONSES TO DEFENDANT'S FORM INTERROGATORIES, SET ONE

Tentative Ruling:

The defendant's unopposed motion to compel initial responses to form interrogatories is granted. Sanctions are imposed in the reduced sum of \$410. The proposed order is signed as modified.